



## SIERRA SUPPORT CENTRE PRIVATE LTD

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or its Customers—where such individuals were introduced to or became known to the Subcontractor through the performance of services under this Agreement.

In the event that the Subcontractor terminates this Agreement, Sierra Support Centre reserves the right to retain the Subcontractor's consultant for the duration of the project as defined in the applicable Work Order.

Should the Subcontractor, its employees, or affiliates be found in violation of the foregoing restrictions, the Subcontractor agrees to pay a finder's fee of INR 50,000 to Sierra Support Centre.

### 9. Non-Solicitation of Personnel.

The Subcontractor agrees that it shall not, either directly or indirectly, solicit, hire, or enter into any contractual relationship with any personnel of Sierra Support Centre or its Customer who were introduced or became known to the Subcontractor in connection with this Agreement, during the term of the Agreement and for a period of twelve (12) months following its termination.

Similarly, during the term of this Agreement and for a period of twelve (12) months thereafter, Sierra Support Centre agrees that it shall not hire or contract directly with any Temporary Consultant engaged in providing services under this Agreement while such Consultant remains employed by the Subcontractor, without providing prior written notice to the Subcontractor.

### 10. Proprietary Rights.

The Work Product provided hereunder shall be deemed to be "work made for hire" and the Subcontractor agrees that any and all rights, title and interests of the Subcontractor in and to the Work Product shall be and are assigned to Sierra Support Centre and/or Customer as its sole and exclusive property.

### 11. Confidential Information.

During the performance of this Agreement, Subcontractor (the "Recipient") may learn Confidential Information of Customer and/or Sierra Support Centre (the "Owner"). Recipient agrees to disclose such information to its employees only on a need-to-know basis and agrees not to disclose such information to third parties unless legally required by judicial process. "Confidential Information" means information, including hard copy or electric form, written or oral, which a reasonable person would consider to be confidential in nature. Confidential Information does not include information that (1) becomes public through no breach of Recipient; (2) Recipient rightfully receives from a third party without restriction; (3) Recipient develops it independently or already had knowledge of such information prior to disclosure by Owner; and (4) Owner gives to any third party without confidentiality limitations. All Confidential Information will be considered trade secrets and will be entitled to all protections under the law for trade secrets. In no event shall Recipient use the Owner's Confidential Information to reverse engineer or otherwise develop products or services